



CHAPTER xxvi.

An Act to empower the Bristol Waterworks Company to A.D. 1914.
raise additional capital and for other purposes.

[8th July 1914.]

WHEREAS the Bristol Waterworks Company (in this Act called “the Company”) were incorporated by the Bristol Waterworks Act 1846 and their powers were extended by two subsequent Acts passed in the years 1850 and 1853 respectively :

And whereas the said three Acts were repealed by the Bristol Waterworks Act 1862 (in this Act called “the Act of 1862”) but the Company were continued incorporated by the same name and are acting under the powers of that Act and the following Acts (that is to say):—

The Bristol Waterworks Amendment Act 1865;

The Bristol Waterworks Act 1872;

The Bristol Waterworks Act 1882;

The Bristol Waterworks Act 1888;

The Bristol Waterworks Act 1889;

The Bristol Waterworks Act 1895;

The Bristol Waterworks Act 1900;

The Bristol Waterworks Act 1902;

(in this Act called “the recited Acts”):

And whereas the demand for water within the existing area of supply of the Company is increasing and extensions and enlargements of the works of the Company are required for the purpose of meeting such demand and it is expedient that the Company for such purposes and for the general purposes of their undertaking be authorised to raise additional share and loan capital :

A.D. 1914.

And whereas the object aforesaid cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

Short title
and collec-
tive title.

1. This Act may be cited as the Bristol Waterworks Act 1914 and the recited Acts and this Act may be cited together as the Bristol Waterworks Acts 1862 to 1914.

Application
of certain
provisions of
Companies
Clauses
Acts.

2. The provisions of the Companies Clauses Consolidation Act 1845 with respect to the following matters (that is to say) :—

The distribution of the capital of the Company into shares ;

The transfer or transmission of shares ;

The payment of subscriptions and the means of enforcing the payment of calls ;

The forfeiture of shares for non-payment of calls ;

The remedies of creditors of the Company against the shareholders ;

The consolidation of the shares into stock ;

The general meetings of the Company and the exercise of the right of voting by the shareholders (except section 66 (Ordinary meetings to be held half-yearly)) ;

The borrowing of money by the Company on mortgage or bond ;

The making of dividends ;

The giving of notices ; and

The provision to be made for affording access to the special Act by all parties interested ;

and Part I. (relating to cancellation and surrender of shares) Part II. (relating to additional capital) and Part III. (relating to debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts shall so far as the same are respectively applicable and except so far as the same may be varied by or be inconsistent with the provisions of this Act extend and apply to the Company in respect of the additional capital which they are by this Act authorised to raise.

3. The Company may (subject to the provisions of Part II. of the Companies Clauses Act 1863) for the purpose of extending their works mains and pipes and for the general purposes of their undertaking raise any additional capital not exceeding in the whole one hundred thousand pounds by the creation and issue of new preference shares or stock which shares or stock shall for all purposes form part of the general capital of the Company Provided that it shall not be lawful for the Company to create and issue under the powers of this Act any greater nominal amount of capital than shall be sufficient to produce including any premium which may be obtained on the sale thereof the sum of one hundred thousand pounds.

A.D. 1914.

Company may raise additional capital.

4. The Company shall not issue any share created under the authority of this Act of less nominal value than ten pounds nor shall any such share vest in the person accepting the same unless and until the full price of such share including any premium obtained upon the sale thereof shall have been paid in respect thereof.

As to vesting of new shares.

5. The proprietors of any preference shares or stock created under the powers of this Act shall not be entitled to any votes in respect thereof.

As to votes of proprietors of such shares.

6. The Company shall not make out of their profits any larger dividend on the additional preference shares or stock to be raised under the powers of this Act than at the rate of five pounds per centum per annum in respect of every one hundred pounds actually paid up of such capital.

Limit of dividend on new preference capital.

7.—(1) All shares or stock created under the powers of this Act shall be issued in accordance with the provisions of this section.

New shares or stock to be sold by auction or tender.

(2) All shares or stock so to be issued shall be offered for sale by public auction or tender in such manner at such times and subject to such conditions of sale as the Company shall from time to time determine Provided as follows:—

(A) Notice of the intended sale shall be given in writing to the town clerk of the city of Bristol to the clerk of the district council of every district wholly or partially within the limits of supply of the Company and to the secretary of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the

A.D. 1914.

case may be and shall also be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the said city:

- (B) A reserve price shall be fixed and notice thereof shall be sent by the Company in a sealed letter to be received by the Board of Trade not less than twenty-four hours before but not to be opened till after the day of auction or last day for the receipt of tenders as the case may be:
- (c) No lot offered for sale shall comprise shares or stock of greater nominal value than one hundred pounds:
- (D) In the case of a sale by tender no preference shall be given to one of two or more persons tendering the same sum in the case of a sale by auction a bid shall not be recognised unless it is in advance of the last preceding bid:
- (E) It shall be one of the conditions of sale that the total sum payable by the purchaser shall be paid to the Company within three months after the date of the auction or of the acceptance of the tender as the case may be.

(3) Any shares or stock which have been so offered for sale and are not sold may be offered at the reserve price to the holders of ordinary and preference shares or stock of the Company in accordance with the provisions of sections 18 19 and 20 of the Companies Clauses Act 1863 and to the employés of the Company and to the consumers of water supplied by the Company in such proportions as the Company may think fit or to one or more of these classes of persons only Provided that in the case of an offer to holders of shares or stock that if the aggregate amount of shares or stock applied for shall exceed the aggregate amount so offered as aforesaid the same shall be allotted to and distributed amongst the applicants as nearly as may be in proportion to the amounts applied for by them respectively.

(4) Any shares or stock which have been offered for sale in accordance with subsection (2) or with subsections (2) and (3) of this section and are not sold shall be again offered for sale by public auction or by tender in accordance with the provisions of this section and any such shares or stock then remaining unsold may be otherwise disposed of at such price

and in such manner as the directors may determine for the purpose of realising the best price obtainable. A.D. 1914.

(5) As soon as possible after the conclusion of the sale or sales the Company shall send a report thereof to the Board of Trade stating the total amount of the respective shares or stock sold the total amount obtained as premium (if any) and the highest and lowest prices obtained for the respective shares or stock.

8. The Company may subject to the provisions of this Act borrow on mortgage of their undertaking any sum or sums not exceeding in the whole one fourth part of the amount of the additional capital which at the time of borrowing has been raised under the powers of this Act But no sum shall be borrowed in respect of any capital so raised until the Company have proved to a justice of the peace before he gives his certificate under the fortieth section of the Companies Clauses Consolidation Act 1845 that the whole of the stock or shares at the time issued together with the premium (if any) realised on the sale thereof have been fully paid up. Power to borrow.

9. Section 29 (For appointment of a receiver) of the Bristol Waterworks Act 1902 is hereby repealed but without prejudice to any appointment heretofore made or to any proceedings pending at the date of the passing of this Act The mortgagees of the undertaking may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than ten thousand pounds in the whole. For appointment of receiver.

10. The following sections of the Bristol Waterworks Act 1889 (that is to say):— Certain sections of Bristol Waterworks Act 1889 incorporated.

Section 32 (Application of premium arising on issue of shares or stock);

Section 36 (Existing mortgages to have priority);

Section 37 (Debenture stock);

Section 38 (As to conversion of borrowed money into capital);

shall extend and apply mutatis mutandis to and in relation to the additional capital by this Act authorised to be raised and the money by this Act authorised to be borrowed by mortgage and debenture stock respectively.

A.D. 1914.
Application
of moneys.

11. All moneys raised under this Act whether by new shares or stock or by borrowing shall be applied only to the general purposes of the undertaking of the Company being in all cases purposes to which capital is properly applicable.

For pro-
tection of
corporation
of Bristol
&c.

12. From and after the twenty-first day of December one thousand nine hundred and fourteen the Company shall if and as from time to time required by the lord mayor aldermen and burgesses of the city of Bristol (in this section referred to as "the corporation") or the guardians of the poor of the parish of Bristol (in this section referred to as "the guardians") furnish to the corporation or to the guardians at their option either--

- (1) A supply of water for domestic purposes to all or any of the buildings or premises comprising or forming part of any workhouse asylum or other public institution of a similar character vested in the corporation or the guardians and situate within the limits of supply for the time being of the Company in which case any such building or premises shall be deemed to be a "private dwelling-house" within the meaning of the recited Acts and of any Act wholly or partially incorporated therewith; or
- (2) A supply of water by meter for domestic and other purposes to any such building or premises as afore-said in which case the Company shall be entitled to demand and receive for such supply such price as shall be in accordance with the trade scale of the Company for the time being in force in respect of the district in which such building or premises is or are situate together with rent of meter and the restriction placed upon a supply of water for other than domestic purposes by section 73 of the Act of 1862 shall not extend and apply to the supply thus furnished; or
- (3) A supply of water for domestic purposes under and in accordance with subsection (1) of this section and in addition a supply of water by meter for other than domestic purposes at such price as shall be in accordance with the trade scale of the Company for the time being in force in respect of the district in which such building or premises is or are situate together with rent of meter:

Provided that the corporation and the guardians having exercised any of the options referred to in this section shall be at liberty at any time and from time to time to exercise in lieu thereof any other of the said options on giving to the Company six months' notice in writing previous to the twenty-first day of December in any year. A.D. 1914.

13. From and after the twenty-first day of December one thousand nine hundred and fourteen the Company shall at the request of the owner or occupier furnish to every occupier of a dwelling-house or part of a dwelling-house which is used otherwise than only as a private dwelling-house a sufficient supply of water by meter for the domestic use of every such occupier and the Company shall be entitled to demand and receive for such supply by meter a price not exceeding two shillings for every one thousand gallons so supplied together with rent of meter. Provided nevertheless that the amount to be paid by the person so supplied with water in respect of his supply exclusive of meter rent shall not in any one quarter be less than the sum which would have been payable had the dwelling-house or part of the dwelling-house so supplied been a private dwelling-house. Provided further that any water supplied in excess of the quantity which such quarterly payment calculated at the rate of two shillings for every one thousand gallons would cover shall be paid for at the reduced rate of one shilling and sixpence for every one thousand gallons. As to supply of premises used otherwise than only as private dwelling-houses.

14. From and after the twenty-first day of December one thousand nine hundred and fourteen the power conferred upon the Company by section 69 of the Act of 1862 to add to the water rent payable in respect of a dwelling-house supplied by the Company with water and situate in that part of the parish of Long Ashton which was by the Bristol Corporation Act 1897 included within the boundaries of the city and county of Bristol and also in that part of the parish of Horfield which was by the Bristol Corporation Act 1904 also included within the said boundaries of the said city and county an additional sum at the rate of one and a half per centum per annum upon the annual rack rent or value of such house shall cease and determine. Provided nevertheless that the Company shall thereupon be entitled to charge in respect of any dwelling-house in such part of the parish of Horfield the same water rents as they may now charge under the said section 69 in respect of a dwelling- As to differential rates.

A.D. 1914. — house in the said city and county which is supplied from any reservoir which is itself supplied by pumping.

Separate
purposes and
charges to
be distin-
guished in
demand
notes.

15. From and after the twenty-first day of December one thousand nine hundred and fourteen all demand notes issued by the Company for the payment of any water rents or other charges shall distinguish and specify the separate purposes for which such payment is demanded and the amounts charged for those purposes respectively.

Costs of Act.

16. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

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